

The Tribunal, Appellate Tribunal and other Authorities (Qualifications, Experience and other Conditions of Service of Members) Rules, 2017

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The Tribunal, Appellate Tribunal and other Authorities (Qualifications, Experience and other Conditions of Service of Members) Rules, 2017

UNION OF INDIA

India

The Tribunal, Appellate Tribunal and other Authorities (Qualifications, Experience and other Conditions of Service of Members) Rules, 2017

Rule

THE-TRIBUNAL-APPELLATE-TRIBUNAL-AND-OTHER-AUTHORITIES-QUALIFICATIONS-EXPERIENCE-AND-OTHE
R-CONDITIONS-OF-SERVICE-OF-MEMBERS-RULES-2017 of 2017

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The Tribunal, Appellate Tribunal and other Authorities (Qualifications, Experience and other Conditions of Service of Members) Rules, 2017

Published vide Notification No. G.S.R. 514(E), dated 1st June, 2017

Ministry of Finance

(Department of Revenue)

G.S.R. 514(E). - In exercise of the powers conferred by section 184 of the Finance Act, 2017 (7 of 2017), the Central Government hereby makes the following rules, namely: -

1.

Short title, commencement and application.

(1)

These rules may be called the Tribunal, Appellate Tribunal and other Authorities (Qualifications, Experience and other Conditions of Service of Members) Rules, 2017.

(2)

They shall come into force on the date of their publication in the Official Gazette.

(3)

These rules shall apply to the Chairman, Vice-Chairman, Chairperson, Vice- Chairperson, President, Vice- President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member, Member of the Tribunal, Appellate Tribunal or, as the case may be, Authority as specified in column (2) of the Eighth Schedule of the Finance Act, 2017 (7 of 2017).

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means an Act specified in column (3) of the Eighth Schedule of the Finance Act, 2017(7 of 2017);

(b)

"Accountant Member", "Administrative Member", "Judicial Member", "Expert Member", "Law Member", "Revenue Member" or "Technical Member" means the Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member or Technical Member of the Tribunal, Appellate Tribunal or, as the case may be, Authority appointed under the corresponding provisions of the Act;

(c)

"Appellate Tribunal", "Authority" or "Tribunal" has the same meaning as assigned to it in the corresponding provisions of the Act;

(d)

"Chairman" or "Chairperson" or "President" means the Chairman, Chairperson or President of the Tribunal, Appellate Tribunal or, as the case may be, Authority appointed under the corresponding provisions of the Act;

(e)

"Member" means the Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member or Technical Member and includes the Chairman, Vice-Chairman, Chairperson, Vice-Chairperson, Presiding Officer of the Security Appellate Tribunal, President or, as the case may be, Vice-President;

(f)

"Presiding Officer" means the Presiding Officer of the Security Appellate Tribunal appointed under section 15L of the Securities and Exchange Board of India Act,1992 (15 of 1992), Presiding Officer of the Debt Recovery Tribunal appointed under sub-section (1) of section 4 of the Recovery of Debts due to Banks and Financial Institutions Act, 1993

(

51 of 1993

) and Presiding Officer of the Industrial Tribunal appointed by the Central Government under sub-section (1) of section 7A of the Industrial Disputes Act,1947 (14 of 1947);

(g)

"Search-cum-Selection Committee" means the Search-cum-Selection Committee referred to in rule 4;

(h)

"Vice-Chairman" or "Vice-Chairperson" or "Vice-President" means the Vice-Chairman, the Vice-Chairperson or Vice-President of the Tribunal, Appellate Tribunal or, as the case may be, Authority;

(i)

words and expressions used herein and not defined but defined in the Act shall have the same meanings respectively assigned to them in the respective Acts.

3.

Qualifications for appointment of Member.

- The qualification for appointment of the Chairman, Chairperson, President, Vice-Chairman, Vice- Chairperson, Vice-President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or Member of the Tribunal, Appellate Tribunal or, as the case may be, Authority shall be such as specified in column (3) of the Schedule annexed to these rules.

4.

Method of recruitment.

(1)

The Chairman, Chairperson, President, Vice-Chairman, Vice- Chairperson, Vice- President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or Member of the Tribunal, Appellate Tribunal or, as the case may be, Authority shall be appointed by the Central Government on the recommendation of a Search-cum-Selection Committee specified in column (4) of the said Schedule in respect of the Tribunal, Appellate Tribunal or, as the case may be, Authority specified in column (2) of the said Schedule.

(2)

The Secretary to the Government of India in the Ministry or Department under which the Tribunal, Appellate Tribunal or, as the case may be, Authority is constituted or established shall be the convener of the Search-cum -Selection Committee.

(3)

The Search-cum-Selection Committee shall determine its procedure for making its recommendation.

(4)

No appointment of Chairman, Chairperson, President, Vice-Chairman, Vice- Chairperson, Vice- President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or Member of the Tribunal, Appellate Tribunal or Authorities shall be invalid merely by reason of any vacancy or absence in the Search-cum-Selection Committee.

(5)

Nothing in this rule shall apply to the appointment of Chairman, Chairperson, President, Vice-Chairman, Vice-Chairperson, Vice- President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or Member of the Tribunal, Appellate Tribunal or, as the case may be, Authority functioning as such immediately before the commencement of these rules.

5.

Medical fitness.

- No person shall be appointed as the Chairman, Chairperson, President, Vice-Chairman, Vice- Chairperson, Vice-President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or Member of the Tribunal, Appellate Tribunal or Authority, or a case may be unless he is declared medically fit by an authority specified by the Central Government in this behalf.

6.

Resignation by a Member.

- A Member may, by writing under his hand addressed to the Central Government, resign his office at any time: Provided that the Member shall, unless he is permitted by the Central Government to relinquish office sooner, continue to hold office until the expiry of three months from the date of receipt of such notice or until a person duly appointed as a successor enters upon his office or until the expiry of his term of office, whichever is the earliest.

7.

Removal of Member from office.

- The Central Government may, on the recommendation of a Committee constituted by it in this behalf, remove from office any Member, who-

(a)

has been adjudged as an insolvent; or

(b)

has been convicted of an offence which, in the opinion of the Central Government, involves moral turpitude; or

(c)

has become physically or mentally incapable of acting as such a Member; or

(d)

has acquired such financial or other interest as is likely to affect prejudicially his functions as a Member; or

(e)

has so abused his position as to render his continuance in office prejudicial to the public interest:

Provided that where a Member is proposed to be removed on any ground specified in clauses (b) to (e), the Member shall be informed of the charges against him and given an opportunity of being heard in respect of those charges:

Provided further that the Chairperson or member of the National Company Appellate Tribunal shall be removed from office in consultation with the Chief Justice of India.

8.

Procedure for inquiry of misbehavior or incapacity of the Member.

(1)

If a written complaint is received by the Central Government, alleging any definite charge of misbehavior or incapacity to perform the functions of the office in respect of a Chairman, Vice-Chairman, Chairperson, Vice-Chairperson, President, Vice-President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or Member, the Ministry or Department of the Government of India under which the Tribunal, Appellate Tribunal or, as the case may be, Authority is constituted or established, shall make a preliminary scrutiny of such complaint.

(2)

If on preliminary scrutiny, the Ministry or Department of the Government of India under which the Tribunal, Appellate Tribunal or, as the case may be, Authority is constituted or established, is of the opinion that there are reasonable grounds for making an inquiry into the truth of any misbehavior or incapacity of a Chairman, Vice-Chairman, Chairperson, Vice-Chairperson, President, Vice-President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or Member, it shall make a reference to the Committee constituted under rule 7 to conduct the inquiry.

(3)

The Committee shall complete the inquiry within such time or such further time as may be specified by the Central Government.

(4)

After the conclusion of the inquiry, the Committee shall submit its report to the Central Government stating therein its findings and the reasons therefor on each of the charges separately with such observations on the whole case as it may think fit.

(5)

The Committee shall not be bound by the procedure laid down by the Code of Civil Procedure, 1908 (5 of 1908) but shall be guided by the principles of natural justice and shall have power to regulate its own procedure, including the fixing of date, place and time of its inquiry.

9.

Term of office of Member.

- Save as otherwise provided in these rules, the Chairman, Chairperson, President, Vice-Chairman, Vice-Chairperson, Vice President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or, as the case may be, Member shall hold office for a term as specified in column (5) of the said Schedule and shall hold the office up to such age as specified in column (6) in the said Schedule from the date on which he enters upon his office and shall be eligible for reappointment.

10.

Casual vacancy.

(1)

In case of a casual vacancy in the office of,-

(a)

the Chairman, Chairperson, President, or Presiding Officer of the Security Appellate Tribunal, the Central Government shall have the power to appoint the senior most Vice-Chairperson or Vice-Chairman, Vice-President or in his absence, one of the Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue

Member, Technical Member, or Member of the Tribunal, Appellate Tribunal or, as the case may be, Authority to officiate as Chairperson, Chairman, President or Presiding Officer.

(b)

the Chairperson of the Debts Recovery Appellate Tribunal, the Central Government shall have power to appoint the Chairperson of another Debts Recovery Appellate Tribunal to officiate as Chairperson and in case of a casual vacancy in the office of the Presiding Officer of the Debts Recovery Tribunal, the Chairperson of the Debts Recovery Appellate Tribunal shall have power to appoint the Presiding Officer of another Debts Recovery Appellate Tribunal to officiate as Presiding Officer.

11.

Salary and allowances.

(1)

The Chairman, Chairperson or President of the Tribunal, Appellate Tribunal or, as the case may be, Authority or the Presiding Officer of the Security Appellate Tribunal shall be paid a salary of Rs. 2,50,000 (fixed) and other allowances and benefits as are admissible to a Central Government officer holding posts carrying the same pay.

(2)

The Vice-Chairman, Vice-Chairperson, Vice-President, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or, as the case may be, Member shall be paid a salary of Rs. 2,25,000 and shall be entitled to draw allowances as are admissible to a Government of India Officer holding Group 'A' post carrying the same pay.

(3)

A Presiding Officer of the Debt Recovery Tribunal or a Presiding Officer of the Industrial Tribunal constituted by the Central Government shall be paid a salary of Rs.1,44,200 - 2,18,200 and shall be entitled to draw allowances as are admissible to a Government of India officer holding Group 'A' post carrying the same pay.

(4)

In case of a person appointed as the Chairman, Chairperson, President, Vice-Chairman, Vice-Chairperson, Vice-President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or Member, as the case may be, is in receipt of any pension, the pay of such person shall be reduced by the gross amount of pension drawn by him.

12.

Pension, Gratuity and Provident Fund.

(1)

In case of a serving Judge of the Supreme Court, a High Court or a serving Judicial Member of the Tribunal or a member of the Indian Legal Service or a member of an organised Service appointed to the post of the Chairperson, Chairman, President or Presiding Officer of the Security Appellate Tribunal, the service rendered in the Tribunal, Appellate Tribunal or, as the case may be, Authority shall count for pension to be drawn in accordance with the rules of the service to which he belongs and he shall be governed by the provisions of the General Provident Fund (Central Services) Rules, 1960 and the Contribution Pension System.

(2)

In all other cases, the Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or Member shall be governed by the provisions of the Contributory Provident Fund (India) Rules, 1962 and the Contribution Pension System.

(3)

Additional pension and gratuity shall not be admissible for service rendered in the Tribunal, Appellate Tribunal or, as the case may be, Authority.

13.

Leave.

(1)

The Chairman, Chairperson, President, Vice-Chairman, Vice-Chairperson, Vice-President, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member, Presiding Officer or a Member shall be entitled to thirty days of earned Leave for every year of service.

(2)

Casual Leave not exceeding eight days may be granted to the Chairman, Chairperson, President, Vice-Chairman, Vice-Chairperson, Vice President, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member or Technical Member, Presiding Officer or a Member in a calendar year.

(3)

The payment of leave salary during leave shall be governed by rule 40 of the Central Civil Services (Leave) Rules, 1972.

(4)

The Chairman, Chairperson, President, Vice-Chairman, Vice-Chairperson, Vice President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or Member shall be entitled to encashment of leave in respect of the earned Leave standing to his credit, subject to the condition that maximum leave encashment, including the amount received at the time of retirement from previous service shall not in any case exceed the prescribed limit under the Central Civil Service (Leave) Rules, 1972.

14.

Leave sanctioning authority.

(1)

Leave sanctioning authority,-

(a)

for the Vice-Chairman, Vice-Chairperson, Vice-President, Presiding Officer of the Debts Recovery Tribunal and Industrial Tribunal, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or Member shall be Chairman, Chairperson or as the case may be, President; and

(b)

for the Chairman, Chairperson, Presiding Officer of Security Appellate Tribunal or President, shall be the Central Government, who shall also be sanctioning authority for Accountant Member, Administrative Member, Judicial Member, Expert Member or Member in case of absence of Chairman, Chairperson, Presiding Officer of Security Appellate Tribunal or President.

(2)

The Central Government shall be the sanctioning authority for foreign travel to the Chairman, Chairperson, President, Vice-Chairman, Vice-Chairperson, Vice-President, Accountant Member, Administrative Member, Judicial Member, Expert Member, Technical Member, Presiding Officer or a Member.

15.

House rent allowance.

- The Chairman, Chairperson, President, Vice-Chairman, Vice-Chairperson, Vice President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Technical Member or Member shall be entitled to house rent allowance at the same rate as are admissible to Group 'A' Officer of the Government of India of a corresponding status.

16.

Transport allowance.

- The Chairman, Chairperson, President, Vice-Chairman, Vice-Chairperson, Vice-President, Accountant Member, Administrative Member, Judicial Member, Expert Member, Technical Member, Presiding Officer or Member shall be entitled to the facility of staff car for journeys for official and private purposes in accordance with the facilities as are admissible to Group 'A' Officer of the Government of India of a corresponding status as per the provisions of Staff Car Rules.

17.

Declaration of Financial and other Interests.

- The Chairman, Chairperson, President, Vice-Chairman, Vice-Chairperson, Vice-President, Accountant Member, Administrative Member, Judicial Member, Expert Member, Technical Member, Presiding Officer or Member shall, before entering upon his office, declare his assets, and his liabilities and financial and other interests.

18.

Other conditions of service.

(1)

The terms and conditions of service of a Chairman, Chairperson, President, Vice-Chairman, Vice-Chairperson, Vice-

President, Accountant Member, Administrative Member, Judicial Member, Expert Member, Technical Member, Presiding Officer or Member with respect to which no express provision has been made in these rules, shall be such as are admissible to a Group 'A' Officer of the Government of India of a corresponding status.

(2)

The Chairman, Chairperson, President, Vice-Chairman, Vice- Chairperson, Vice- President, Administrative Member, Judicial Member, Expert Member, Technical Member, Presiding Officer or Member shall not practice before the Tribunal, Appellate Tribunal or Authority after retirement from the service of that Tribunal, Appellate Tribunal or, as the case may be, Authority.

(3)

The Chairman, Chairperson, President, Vice-Chairman, Vice- Chairperson, Vice- President, Accountant Member, Administrative Member, Judicial Member, Expert Member, Technical Member, Presiding Officer or Member shall not undertake any arbitration work while functioning in these capacities in the Tribunal, Appellate Tribunal or Authority.

(4)

The Chairman, Chairperson, President, Vice-Chairman, Vice- Chairperson, Vice- President, Presiding Officer, Accountant Member, Administrative Member, Judicial Member, Expert Member, Law Member, Revenue Member, Technical Member or Member of the Tribunal, Appellate Tribunal or, as the case may be, Authority shall not, for a period of two years from the date on which they cease to hold office, accept any employment in, or connected with the management or administration of, any person who has been a party to a proceeding before the Tribunal, Appellate Tribunal or, as the case may be, Authority:

Provided that nothing contained in this rule shall apply to any employment under the Central Government or a State Government or a local authority or in any statutory authority or any corporation established by or under any Central, State or Provincial Act or a Government company as defined in clause (45) of section 2 of the Companies Act, 2013 (18 of 2013

).

19.

Oaths of office and secrecy.

- Every person appointed to be the Chairman, Chairperson, President, Vice-Chairman, Vice- Chairperson, Vice-President, Accountant Member, Administrative Member, Judicial Member, Expert Member, Technical Member, Presiding Officer or Member shall, before entering upon his office, make and subscribe an oath of office and secrecy in Forms I and II annexed to these rules.

20.

Power to relax.

- Where the Central Government is of the opinion that it is necessary or expedient so to do, it may, by order for reasons to be recorded in writing relax any of the provisions of these rules with respect to any class or category of persons.

21.

Interpretation.

- If any question arises relating to the interpretation of these rules, the decision of the Central Government thereon shall be final.

22.

Saving.

- Nothing in these rules shall affect reservations, relaxation of age limit and other concessions required to be provided for the Scheduled Castes, Scheduled Tribes, Ex-servicemen and other special categories of persons in accordance with the orders issued by the Central Government from time to time in this regard.

Form I

(See rule 19)

Form of Oath of Office for Chairman/Vice-Chairman/ Chairperson/ Vice-Chairperson/ President/Vice-President/ Presiding Officer/Administrative Member/Judicial Member/ Expert Member/Law Member/Revenue Member/Technical Member, /Member of the (Name of the Tribunal/Appellate Tribunal/Authority).

I, A. B., having been appointed as Chairman/Vice-Chairman/ Chairperson/ Vice-Chairperson/ President/Vice-President/ Presiding Officer/ Accountant Member/ Administrative Member, Judicial Member/ Expert Member / Law Member/ Revenue Member/ Technical Member/ Member of the (Name of the Tribunal/Appellate Tribunal/Authority).

do solemnly affirm/do swear in the name of God that I will faithfully and conscientiously discharge my duties as the Chairman/Vice-Chairman/ Chairperson/ Vice-Chairperson/ President/Vice-President/ Presiding Officer/ Accountant Member/ Administrative Member/ Judicial Member/ Expert Member / Law Member/ Revenue Member/ Technical Member/ Member (Name of the Tribunal/Appellate Tribunal/Authority) to the best of my ability, knowledge and judgment, without fear or favour, affection or ill-will and that I will uphold the Constitution and the laws of land.

Form II

(See rule 19)

Form of Oath of Secrecy for Chairman/Vice-Chairman/ Chairperson/ Vice-Chairperson/ President/Vice-President/ Presiding Officer / Accountant Member/ Administrative Member/ Judicial Member/ Expert Member / Law Member/ Revenue Member/ Technical Member /Member of the (Name of Tribunal/Appellate Tribunal/Authority).

I, A. B., having been appointed as the Chairman/Vice-Chairman/ Chairperson/ Vice-Chairperson/ President/Vice-President/ Presiding Officer/Member of the(Name of Tribunal/Appellate Tribunal/Authority), do solemnly affirm/do swear in the name of God that I will not directly or indirectly communicate or reveal to any person or persons any matter which shall be brought under my consideration or shall become known to me as Chairman/Vice-Chairman/ Chairperson/ Vice-Chairperson/ President/Vice-President/ Presiding Officer / Accountant Member/ Administrative Member, Judicial Member/ Expert Member / Law Member/ Revenue Member/ Technical Member /Member of the said (Name of Tribunal/Appellate Tribunal/Authority) except as may be required for the due discharge of my duties as the Chairman/Vice-Chairman/ Chairperson/ Vice-Chairperson/ President/Vice-President/ Presiding Officer/Member.

Schedule

Sl. No.

Name of Tribunal, Appellate Tribunal or Authority.

Qualification for appointment of Chairperson,

Chairman, President, Vice- Chairperson, Vice- Chairman,

Vice-President, Presiding Officer, Accountant Member,

Administrative Member, Judicial Member, Expert Member or

Technical Member or Member.

Composition of Search-cum-Selection Committee

Term of Office

Maximum age for holding Office (in years)

(1)

(2)

(3)

(4)

(5)

(6)

1.

Industrial Tribunal constituted by the Central

Government under the Industrial Disputes Act, 1947 (

14 of 1947

)

A person shall not be

qualified for appointment as Presiding Officer, unless he, -

(a) is, or has been,

or is qualified to be, a Judge of a High Court; or

(b) he has, for a

period of not less than three-years, been a District Judge or an

Additional District Judge; or

(c) is a person of ability, integrity and

standing, and having special knowledge of, and professional

experience of not less than twenty years in economics, business,

commerce, law, finance, management, industry, public affairs, administration, labour relations, industrial disputes or any other matter which in the opinion of the Central Government is useful to the Industrial Tribunal.

Search-cum-Selection-

Committee for the post of the Presiding Officer, -

(i) a person to be

nominated by the Central Government chairperson;

(ii) Secretary to the

Government of India, Ministry of Labour and Employment- member;

(iii) Secretary to

the Government of India to be nominated by the Central

Government-member;

(iv) two experts to be nominated by the Central

Government- members.

Three Years

Presiding Officer- Sixty- five years of age

2.

Income-tax Appellate Tribunal under the

Income-tax Act, 1961 (

43 of 1961

)

(1) A person shall

not be qualified for appointment as President unless he is a sitting or retired Judge of a High Court and who has completed not less than seven years of service as a Judge in a High Court or a Vice-President of the Income-tax Appellate Tribunal.

(2) The Central

Government may appoint one or more members of the Income-tax Appellate Tribunal to be the Vice-President or, as the case may be, Vice-Presidents thereof.

(3) A person shall

not be qualified for appointment as a Judicial Member, unless, --

(a) he has for at

least ten years held a judicial office in the territory of India;

or

(b) he has been a

member of the Indian Legal Service and has held a post in Grade II of the Service or any equivalent or higher post for at least three years; or

(c) he has been an

advocate for at least ten years;

(4) A person shall

not be qualified for appointment as an Accountant Member, unless,

--

(i) he has for at

least ten years been in the practice of accountancy, -

(a) as a chartered

accountant under the Chartered Accountants Act, 1949 (38 of 1949); or

(b) as a registered

accountant under any law formerly in force; or partly as such registered accountant and partly as a chartered accountant; or
(ii) he has been a member of the Indian Revenue Service (Income-tax Service Group `A') and has held the post of Additional Commissioner of Income-tax or any equivalent or higher post for at least three years.

(A)

Search-cum-Selection Committee for the post of the President and Vice-President, -

(i) a sitting Judge

of Supreme Court to be nominated by the Chief Justice of India-chairperson;

(ii) the President,

Income-tax Appellate Tribunal-member; and

(iii) the Secretary

to the Government of India, Ministry of Law and Justice (Department of Legal Affairs)- member.

(B)

Search-cum-Selection Committee for the Accountant Member and Judicial Member, -

(i) a nominee of the

Minister of Law and Justice-chairperson;

(ii) Secretary to the

Government of India, Ministry of Law and Justice (Department of Legal Affairs)- member;

(iii) President of

the Incometax Appellate Tribunal - member; and

(iv) such other persons, if any, not exceeding

two, as the Minister of Law and Justice may appoint-member.

Three Years

President- Sixty-five

years

Vice-President-

Sixty-two years

Member-Sixty-two years

3.

The Customs, Excise and Service Tax Appellate Tribunal under the Customs Act, 1962 (52 of 1962)

(1) A person shall

not be qualified for appointment as President unless, -

(a) he is or has been

a Judge of a High Court; or

(b) he is the member

of the Appellate Tribunal.

(2) A person shall

not be qualified for appointment as a Judicial Member, unless, -

(a) he has for at

least ten years held a judicial office in the territory of India;

or

(b) he has been a

member of the Indian Legal Service and has held a post in Grade-I

of that Service or any equivalent or higher post for at least three years; or

(c) he has been an advocate for at least ten years.

(3) A person shall not be qualified for appointment as a Technical Member unless he has been a member of the Indian Revenue Service (Customs and Central Excise Service Group 'A') and has held the post of Commissioner of Customs or Central Excise or any equivalent or higher post for at least three years.

(A) Search-cum-Selection Committee for the post of President, -

(i) Chief Justice of India or a Judge of the Supreme Court of India as nominated by the Chief Justice of India as chairperson;

(ii) Secretary to the Government of India, Department of Revenue member;

(iii) Secretary to the Government of India, Ministry of Law and Justice (Department of Legal Affairs)- member;

(iv) Secretary to the Government of India, Department of Personnel and Training-member.

(B) Search-cum-Selection Committee for post of Judicial Member, -

(i) a Judge of the Supreme Court as nominated by the Chief Justice of India-chairperson;

(ii) Secretary to the Government of India, Ministry of Finance (Department of Revenue)- member;

(iii) Secretary to the Government of India, Ministry of Law and Justice (Department of Legal Affairs) -member;

(iv) President of the Customs, Excise and Service Tax Appellate Tribunal- member; and

(v) such other persons, not exceeding two, as the Central Government may nominate- member;

(C). Search-cum-Selection Committee for the post of Technical member,-

(i) Cabinet Secretary to the Government of India ? chairperson;

(ii) Secretary to the Government of India, Ministry of Finance (Department of Revenue)- member;

(iii) Secretary to the Government of India, Ministry of Personnel, Public Grievances and Pensions (Department of Personnel and Training) ? member;

(iv) Secretary to the Government of India, Ministry of Law (Department of Legal Affairs) ? member.

Three Years

President ?

Sixty-seven years

Member- Sixty-two years

4.

Appellate Tribunal under the Smugglers and Foreign Exchange Manipulators (Forfeiture of Property) Act, 1976 (13 of 1976)

(1) The Chairman of the Appellate Tribunal shall be a person who is or has been or is qualified to be a Judge of a Supreme Court or a Judge of a High Court.

(2) The Member of the Appellate Tribunal shall be a person not below the rank of Joint Secretary to the Government of India.

(A) Search-cum-Selection Committee for the post of Chairman, -

- (i) Chief Justice of India or a Judge of the Supreme Court of India as nominated by the Chief Justice of India ? chairperson;
- (ii) Secretary to the Government of India (Department of Revenue)- member;
- (iii) Secretary to the Government of India, Ministry of Law and Justice (Department of Legal Affairs)- member;
- (iv) Secretary to the Government of India, Department of Personnel and Training-member.

(B) Search-cum-Selection Committee for the post of Member, -

- (i) Cabinet Secretary ? chairperson;
- (ii) Secretary to the Government of India, Department of Personnel and Training-member;
- (iii) Secretary to the Government of India (Department of Revenue) - member;
- (iv) two Secretaries to the Government of India to be nominated by the Central Government - members.

Three Years

Chairperson

Sixty-five years

Member ? Sixty-two years

5.

Central Administrative Tribunal under the Administrative Tribunal Act, 1985 (13 of 1985)

).

(1) A person shall not be qualified for appointment as the Chairman, unless he, ?

(a) is, or has been,

or is qualified to be, a Judge of a High Court; or

(b) has, for a period

of not less than three years, held office as Administrative Member or Judicial Member in the Central Administrative Tribunal;

(c) is a person of

ability, integrity and standing, and having special knowledge of, and professional experience of not less than twenty years in economics, business, commerce, law, finance, accountancy, management, industry, public affairs or administration, or any other matter which in the opinion of the Central Government is useful to the Central Administrative Tribunal.

(2). A person shall

not be qualified for appointment,-

(a) as a Judicial

Member, unless he, -

(i) is, or has been,

or is qualified to be, a Judge of a High Court; or

(ii) has, for at

least one year, held the post of Secretary to the Government of India in the Department of Legal Affairs or the Legislative Department including Member ?Secretary, Law Commission of India; or

(iii) has, for at

least two years, held a post of Additional Secretary to the Government of India in the Department of Legal Affairs or Legislative Department; or

(iv) has, for at

least ten years, held a judicial office in the territory of India.

(b) as an

Administrative Member, unless he, -

(i) has, for at least

one year, held the post of Secretary to the Government of India or any other post under the Central Government or a State Government and carrying the scale of pay which is not less than that of a Secretary to the Government of India for at least one year; or

(ii) has, for at

least two years, held a post of Additional Secretary to the Government of India, or any other post under the Central or State Government carrying the scale of pay which is not less than that of Additional Secretary to the Government of India at least for a period of two years:

Provided that the officers belonging to the

All-India services who were or are on Central deputation to a lower post shall be deemed to have held the post of Secretary or Additional Secretary, as the case may be, from the date such officers were granted proforma promotion or actual promotion whichever is earlier to the level of Secretary or Additional Secretary, as the case may be, and the period spent on Central deputation after such date shall count for qualifying service for

the purpose of this clause.

(A)

Search-cum-Selection Committee for the post of Chairman and Judicial Member, ?

(i) Chief Justice of

India or his nominee- chairperson;

(ii) Chairman of the

Central Administrative Tribunal, Principal Bench ? member;

(iii) Secretary to

the Government of India, (Department of Personnel and Training)-member;

(iv) Secretary to the

Government of India, Ministry of Law and Justice -member;

(e) one expert, to be

nominated by the Central Government of India member.

(B)

Search-cum-Selection Committee for the post of Administrative Member, ?

(a) a person to be

nominated by the Central Government - chairperson;

(b) Chairman of the,

Central Administrative Tribunal ? member;

(c) Secretary to the

Government of India, (Department of Personnel and Training)-member;

(d) Secretary to the

Government of India, Ministry of Law and Justice -member;

(e) one expert, to be nominated by the

Government of India - member.

Three Years

Chairman Sixty-eight

years

Member - Sixty-five years

6.

Railway Claims Tribunal under the Railway Claims

Tribunal Act, 1987 (

54 of 1987

)

(1) A person shall

not be qualified for appointment as the Chairman, unless he, ?

(a) is, or has been,

or is qualified to be a Judge of a High Court; or

(b) has, for a period

of not less than three years, held office as Vice-Chairman,

Judicial Member or Technical Member, as the case may be; or

(c) is a person of

ability, integrity and standing, and having a special knowledge

of, and professional experience of not less than twenty-five

years in claims and commercial matters relating to railways.

(2) A person shall

not be qualified for appointment as the Vice-Chairman (Judicial),

unless he, ?

(a) is, or has been,

or is qualified to be, a Judge of a High Court; or

(b) has been a member

of the Indian Legal Service and has held a post in Grade I of that Service or any higher post for at least five years; or

(c) has, for at least

five years, held a civil judicial post carrying a scale of pay

which is not less than that of a Joint Secretary to the

Government of India; or

(d) has, for a period

of not less than three years, held office as a Judicial Member.

(3) A person shall

not be qualified for appointment as the Vice-Chairman

(Technical), unless he, ?

(a) has, for a period

of not less than three years, held office as a Technical Member;

(b) has, for at least

five years, held a post under a railway administration carrying a

scale of pay which is not less than that of a Joint Secretary to

the Government of India and has adequate knowledge of rules and procedure of, and experience in, claims and commercial matters

relating to railways.

(4) A person shall

not be qualified for appointment as a Judicial Member, unless he,

?

(a) is, or has been,

or is qualified to be, a Judge of a High Court;

(b) has, for at least

ten years, held a judicial office in the territory of India.

(5) A person shall not be qualified for

appointment as a Technical Member unless he is a person of

ability, integrity and standing having special knowledge of rules

and procedure of, and experience in, claims and commercial

matters relating to railways of not less than twenty years.

(A) Selection

Committee consisting for the post of the Chairman, Vice-Chairman

(Judicial) or Member (Judicial): -

(i) Chief Justice of

India or his nominee- chairperson;

(ii) Chairman or

Member (Traffic) of the Railway Board- member;

(iii) Secretary to

the Government of India to be nominated by the Central

Government- member;

(iv) two experts who

should have knowledge and experience of Claims and Commercial

matters pertaining to Railways to be nominated by the Central

Government- members.

(B)

Search-cum-Selection Committee for the post of the Vice-Chairman

(Technical) or Member (Technical),-

(i) a person to be

nominated by the Central Government chairperson;

(ii) Chairman or

Member (Traffic) of the Railway Board- member;

(iii) Secretary to

the Government of India to be nominated by the Central

Government- member;

(iv) two experts with knowledge and experience

of Claims and Commercial matters relating to Railways to be

nominated by the Central Government - members.

Three Years

Chairman- Sixty-seven

years

Vice- Chairman-

Sixty-five years

Member ? Sixty-two years

7.

Securities Appellate Tribunal under the

Securities Exchange Board of India Act, 1992 (

15 of 1992

)

(1) A person shall

not be qualified for appointment as the Presiding Officer or a

Judicial Member or a Technical Member of the Securities Appellate

Tribunal, unless he, -

(a) in the case of

the Presiding Officer, is, or has been, a Judge of the Supreme

Court or a Chief Justice of a High Court or a Judge of a High

Court for at least seven years;

(b) in the case of a

Judicial Member, is, or has been, a Judge of a High Court for at

least five years; or

(c) in the case of a

Technical Member,?

(i) is, or has been,

an Additional Secretary or Secretary in the Ministry or

Department of the Central Government or any equivalent post in

the Central Government or a State Government; or

(ii) is a person of

proven ability, integrity and standing having special knowledge

and professional experience, of not less than fifteen years, in

financial sectors including securities market or pension funds or

commodity derivatives or insurance.

(2) A Member or Part

time Member of the Board or the Insurance Regulatory and

Development Authority or the Pension Fund Regulatory and

Development Authority, or any person at senior management level

equivalent to Executive Director in the Board or in such

Authorities, shall not be appointed as Presiding Officer or

Member of the Securities Appellate Tribunal, during his service

or tenure as such with the Board or with such Authorities, as the case may be, or within two years from the date on which he ceases to hold office as such in the Board or in such Authorities.

(3) The Presiding Officer or Member of the Securities Appellate tribunal shall be a person who does not have any financial or other interest as are likely to prejudicial affect their functions as such Presiding Officer or Member.

(A) The Presiding Officer and Judicial Member of the Tribunal shall be appointed by the Central Government in consultation with the Chief Justice of India or his nominee.

(B) Search-cum-Selection Committee for the post of Technical Member, ?

(i) Presiding Officer, Securities Appellate Tribunal? chairperson;

(ii) Secretary to the Government of India (Department of Economic Affairs) ? member;

(iii) Secretary to the Government of India, (Department of Financial Services) ? member; and

(iv) Secretary to the Government of India, in the Legislative Department or Department of Legal Affairs ?member.

Three Years

Presiding Officer ?

Seventy years

Member ? Sixty-seven years

8.

Debts Recovery Tribunal under the Recovery of Debts Due to Banks and Financial Institutions Act, 1993 (51 of 1993)

A person shall not be qualified for appointment as Presiding Officer of the Debts Recovery Tribunal, unless he,-

(a) is, or has been,

or is qualified to be, a District Judge; or

(b) is a person of ability, integrity and standing, and having special knowledge of, and professional experience of not less than twenty years in economics, business, commerce, law, finance, accountancy, management, industry, public affairs, administration, banking, debt recovery or any other matter, which in the opinion of the Central Government is useful to the Debt Recovery Tribunal.

Search-cum-Selection

Committee for the post of Presiding Officer of the Debts Recovery Tribunal,-

(i) Chief Justice of India or his nominee-chairperson;

(ii) Secretary to the

Government of India, Ministry of Finance (Department of Economic Affairs)- member;
(iii) Secretary to the Government of India, Ministry of Law and Justice member;
(iv) Governor of the Reserve Bank or the Deputy Governor of the Reserve Bank of India nominated by the Governor of the Reserve Bank of India member; and
(v) Secretary to the Government of India or Additional Secretary to the Government of India, Ministry of Finance, (Department of Financial Services)- member.
Three Years

Presiding Officer ? Sixty-five years

9.

Debts Recovery Appellate Tribunal under the Recovery of Debts Due to Banks and Financial Institutions Act, 1993 (51 of 1993)

A person shall not be qualified for appointment as Chairperson, unless he,?

(a) is, or has been,

or is qualified to be, a Judge of a High Court; or

(b) has been a member

of the Indian Legal Service and has held a post in Grade I of that service; or

(c) has held office as the Presiding Officer of a Debts Recovery Tribunal for at least three years.

Search-cum-Selection

Committee for the Chairperson of the Debts Recovery Appellate Tribunal,-

(i) Chief Justice of

India or his nominee- chairperson;

(ii) Secretary to the

Government of India, Ministry of Finance (Department of Economic Affairs)?member;

(iii) Secretary to

the Government of India, Ministry of Law and Justice member;

(iv) Governor of the Reserve Bank or the Deputy

Governor of the Reserve Bank of India nominated by the Governor of the Reserve Bank of India - member; and (v) Secretary to the

Government of India or Additional Secretary to the Government of India, Ministry of Finance, (Department of Financial Services)-member.

Three Years

Chairperson-Seventy years

10.

Airport Appellate Tribunal under the Airport Authority of India Act, 1994(55 of 1994)

A person shall not be

eligible for appointment as Chairperson, unless he,-

(a) is, or has been,

or is qualified to be, a judge of a High Court; or

(b) is a person of ability, integrity and

standing, and having special knowledge of, and professional experience of not less than twenty-five years in economics, business, commerce, law, finance, accountancy, management industry, public affairs, administration or any other matter which in the opinion of the Central Government, is useful to the Appellate Tribunal.

Search-cum-Selection

Committee for the post of Chairperson of Airport Appellate Tribunal,?

- (i) a person to be nominated by the Central Government chairperson;
- (ii) Secretary to the Government of India, Ministry of Civil Aviation-member;
- (iii) Secretary to the Government of India to be nominated by the Central Government-member;
- (iv) two experts, to be nominated by the Central Government-members.

Three Years

Chairperson-Sixty-two years

11.

Telecom Disputes Settlement and Appellate Tribunal under the Telecom Regulatory Authority of India Act, 1997 (24 of 1997)

- (1) A person shall not be qualified for appointment as Chairperson, unless he,-
- (a) is, or has been, or is qualified to be, a Judge of Supreme Court; or
 - (b) is, or has been, Chief Justice of a High Court; or
 - (c) has, for a period of not less than three years held office as Member; or
 - (d) is a person of ability, integrity and standing, and having special knowledge of, and professional experience of not less than twenty-five years in economics, business, commerce, law, finance, accountancy, management, industry, public affairs, administration, telecommunications or any other matter which in opinion of the Central Government is useful to the Telecom Disputes Settlement and Appellate Tribunal.

- (2) A person shall not be qualified for appointment as Member unless he is a person of ability, integrity and standing having special knowledge of, and professional experience of, not less than twenty years in economics, business, commerce, law, finance, accountancy, management, industry, public affairs, administration, telecommunications or any other matter which in opinion of the Central Government is useful to the Telecom Disputes Settlement and Appellate Tribunal.

(A)

Search-cum-Selection Committee for the post of the Chairperson, ?

- (i) Chief Justice of

India or his nominee-chairperson;
(ii) Secretary to the
Government of India, (Department of Telecommunications) - member;
(iii) Secretary to
the Government of India to be nominated by the Central Government
- member;
(iv) two experts, to
be nominated by the Central Government ? members.

(B)

Search-cum-Selection Committee for the post of Member, ?

(i) a person to be
nominated by the Central Government chairperson;
(ii) Secretary to the
Government of India, (Department of Telecommunications)- member;
(iii) Secretary to
the Government of India to be nominated by the Central
Government- member;
(iv) two experts to be nominated by the Central
Government- members.

Three Years

Chairperson-Seventy

years

Member ? Sixty-five years

12.

Appellate Board under the Trade Marks Act, 1999

(47 of 1999)

(1) A person shall
not be qualified for appointment as Chairman, unless he,-
(a) is, or has been,
or is qualified to be, a Judge of High Court; or
(b) has, for a period
of not less than three years, held office as Vice- Chairperson of
the Appellate Board.

(2) A person shall
not be qualified for appointment as Vice-Chairman, unless he,-
(a) is, or has been,
or is qualified to be, a Judge of High Court; or
(b) has, for at least
two years, held the office of Judicial Member or a Technical
Member, and has a degree in law with at least 12 years of
practice at bar or 12 years? experience in a State Judicial
Service.

(3) A person shall
not be qualified for appointment as Judicial Member, unless he, -
(a) is, or has been,
or is qualified to be a Judge of High Court; or
(b) has, for at least
ten years, held a judicial office in the territory of India.

(4) A person shall
not be qualified for appointment as Technical Member (Trademark),
unless he,-

(a) has, for at least ten years, exercised functions of a tribunal under the Trade Marks Act, 1999 (47 of 1999)
) and has held a post not lower than the post of Joint Registrar for at least five years and has a degree in law with at least twelve years of practice at bar or twelve years? experience in a State Judicial Service, or
(b) has, for at least ten years, been an advocate of a proven specialized experience in trade mark law.

(5) A person shall not be qualified for appointment as Technical Member (Patent), unless he, -

(a) has, for at least five years, held the post or exercised the functions of the Controller under the Patents Act, 1970 (39 of 1970

); or

(b) has, for at least ten years, functioned as a registered patent agent and possesses a degree in engineering or technology or a master?s degree in science from any University established under law for the time being in force.

(6) A person shall not be qualified for appointment as Technical Member (Copyright), unless he, ?

(a) is, or has been a member of the Indian Legal Service and is holding, or has held a post in Grade I of that Service for at least three years; or

(b) has, for at least ten years, held a judicial office in the territory of India; or

(c) is, or has been a member of a Tribunal or Civil Service not below the rank of a Joint Secretary to the Government of India with three years? experience in the field of Copyright; or

(d) has, for at least ten years, been an advocate of a proven specialized experience in Copyright Law:

Provided that at least one member of the Appellate Board for purposes of the Copyright Act shall have qualification as in (a), (b) or (d) above.

(A)

Search-cum-Selection for the post of the Chairman, Vice-Chairman or Judicial Member of the Appellate Board,-

(i) Chief Justice of India or his nominee- chairperson;

(ii) Secretary to the Government of India, (Department of Industrial Policy and Promotion) - member;

(iii) Secretary to

the Government of India to be nominated by the Central Government-member;

(iv) two experts, to be nominated by the Central Government- members.

(B)

Search-cum-Selection Committee for the post of Technical Member (Trade mark), Technical Member (Patent) and Technical Member (Copyright) of the Appellate Board,-

(i) a person to be nominated by the Central Government - chairperson;

(ii) Secretary to the Government of India, (Department of Industrial Promotion and Policy) -member;

(iii) Secretary to the Government of India to be nominated by the Central Government - member;

(iv) two experts, to be nominated by the Central Government - members.

Three Years

Chairman-Sixty-seven

years

Vice-Chairman -

Sixty-five years

Member ? Sixty-five years

13.

National Company Law Appellate Tribunal under the Companies Act, 2013 (18 of 2013

).

(1) The Chairperson

shall be a person who is or has been a Judge of the Supreme Court or the Chief Justice of a High Court.

(2) A Judicial Member

shall be a person who is or has been a Judge of a High Court or is a Judicial Member of the National Company Law Tribunal for five years.

(3) A Technical Member shall be a person of proven ability, integrity and standing having special knowledge and professional experience, of not less than twenty-five years, in law, industrial finance, industrial management or administration, industrial reconstruction, investment, accountancy or any other matter which in the opinion of the Central Government is useful to the National Company Law Appellate Tribunal.

(A) The Chairperson

of the Appellate Tribunal shall be appointed after consultation with the Chief Justice of India.

(B)

Search-cum-Selection Committee for the post of the Judicial Member and Technical Member of the Appellate Tribunal, -

(i) Chief Justice of

India or his nominee -chairperson;
(ii) a senior Judge
of the Supreme Court or a Chief Justice of a High Courtmember;
(iii) Secretary to
the Government of India, Ministry of Corporate Affairs- member;
(iv) Secretary to the Government of India,
Ministry of Law and Justicemember.

Three Years

ChairPerson-Seventy

years

Member ? Sixtyseven years

14.

Authority for Advance Ruling under the
Income-tax Act, 1961 (43 of 1961)

A person shall be
qualified for appointment as,-

(a) Chairman, who:-

(i) is, or has been,
or is qualified to be, a Judge of the Supreme Court; or

(ii) is or has been a
Chief Justice of a High Court; or

(iii) has, for at
least seven years, been a Judge of a High Court; or

(iv) has, for at
least three years, been a Vice-Chairman, Revenue Member or Law
Member of the Authority for Advance Ruling; or

(v) is a person of
ability, integrity and standing, and having special knowledge of,
and professional experience of not less than twenty-five years in
economics, business, commerce, law, finance, accountancy,
management, industry, public affairs, administration, taxation or
any other matter which in the opinion of the Central Government
is useful to the Authority.

(b) Vice-chairman,
who is, or has been, or is qualified to be, a Judge of a High
Court;

(c) Revenue Member
from the Indian Revenue Service who is qualified to be a Member
of the Central Board of Direct Taxes Board and an officer of the
Indian Customs and Central Excise Service, who is qualified to be
a Member of the Central Board of Excise and Customs;

(d) Law Member from the Indian Legal Service,
who is an Additional Secretary to the Government of India.

(A) Search-cum

Selection Committee for the post of Chairman and Vice- Chairman,

-

(i) Chief Justice of
India or a Judge of the Supreme Court of India as nominated by
the Chief Justice of India ? chairperson;

(ii) Secretary to the
Government of India (Department of Revenue) -member;

(iii) Secretary to
the Government of India (Department of Legal Affairs) - member;

(iv) Secretary to the
Government of India (Department of Personnel and Training)
-member.

(B)

Search-cum-Selection Committee for the post of Member, -

(i) Cabinet Secretary
? chairperson;

(ii) Secretary to the
Government of India, (Department of Personnel and Training) -
member;

(iii) Secretary to
the Government of India, (Department of Revenue) - member;

(iv) two Secretaries to the Government of India
to be nominated by the Central Government - members.

Three Years

Chairman- Seventy
years

Vice-Chairman-
Sixty-five years

Member ? Sixty-two years.

15.

Film Certification Appellate Tribunal under the
Cinematograph Act, 1952 (
37 of 1952

)

(1) A person shall
not be qualified for appointment as Chairman, unless he, -

(a) is, or has been,
or is qualified to be, a Judge of a High Court; or

(b) has, for a period
of not less than three years, held office as member; or

(c) is a person of
ability, integrity and standing, and having special knowledge of,
and professional experience of not less than twenty-five years
in, law, management, industry, public affairs, administration,
films or any other matter which in the opinion of the Central
Government, is useful to the Appellate Tribunal.

(2) The Central Government may appoint such
persons, who, in its opinion, or qualified to judge the effect of
films on the public, to be a member of the Appellate Tribunal.

Search-cum-Selection

Committee for post of the Chairman and member of the Appellate
Tribunal, ?

(i) a person to be
nominated by the Central Government chairperson;

(ii) Secretary to the
Government of India, Ministry of Information and
Broadcasting-member;

(iii) Secretary to

the Government of India to be nominated by the Central Government- member;

(iv) two experts to be nominated by the Central Government-members.

Three Years

Chairman ?

Sixty-seven years

Member ? Sixty-five years

16.

National Consumer Disputes Redressal Commission
under the Consumer Protection Act, 1986 (
68 of 1986

)

(1) A person shall

not be qualified for appointment as President, unless he, ?

(a) is, or has been,

or is qualified to be, a Judge of the Supreme Court; or

(b) is, or has been,

Chief Justice of a High Court; or

(c) has, for a period

not less than three years, held office of Member or Judicial Member; or

(d) is a person of

ability, integrity and standing, and having special knowledge of, and professional experience of not less than twenty-five years in economics, business, commerce, law, finance, accountancy, management, industry, public affairs, administration or any other matter which in the opinion of the Central Government, is useful to the National Consumer Disputes Redressal Commission.

(2) A person shall

not be qualified for appointment as Member unless he is a person of ability, integrity and standing, and having special knowledge of, and professional experience of not less than twenty years in economics, business, commerce, law, finance, accountancy, management, industry, public affairs, administration or any other matter which in the opinion of the Central Government, is useful to the National Consumer Disputes Redressal Commission:

Provided that a

person shall not be appointed as a Judicial Member, unless he, ?

(a) is, or has been,

or is qualified to be, a Judge of a High Court;

(b) has, for at least ten years, held a Judicial office in the territory of India.

(A) The President

shall be appointed by the Central Government after consultation with the Chief Justice of India.

(B)

Search-cum-Selection Committee for the post of member, ?

(i) a person who is a

Judge of the Supreme Court, to be nominated by the Chief Justice of India -chairperson;

(ii) Secretary to the Government of India, Ministry of Law and Justice (Department of Legal Affairs) - member;

(iii) Secretary to the Government of India, Ministry of Consumer Affairs ? member;

(iv) two experts to be nominated by the Central Government - members.

Three Years

President ?

Seventy years

Member- Seventy years

17.

Appellate Tribunal for Electricity under the Electricity Act, 2003 (36 of 2003

).

(1) A person shall not be qualified for appointment as Chairperson of the Appellate Tribunal, unless he, ?

(a) is, or has been, or is qualified to be, a Judge of Supreme Court; or

(b) is, or has been, Chief Justice of a High Court; or

(c) has, for a period of not less than three years, held office of Judicial Member, or Technical member; or

(d) is a person of ability, integrity and standing, and having special knowledge of, and professional experience of not less than twenty-five years in economics, business, commerce, law, finance, accountancy, management, industry, public affairs, administration or any other matter which in the opinion of the Central Government is useful to Appellate Tribunal.

(2) A person shall not be qualified for appointment as Judicial Member, unless, he?

(a) is, or has been, or is qualified to be, a Judge of a High Court; or

(b) has, for at least ten years, held a judicial office in the territory of India.

(3) A person shall not be qualified for appointment as Technical Member unless he is a person of ability, integrity and standing having special knowledge of, and professional experience of, not less than twenty years in matters dealing with electricity generation, transmission, distribution, regulation, economics, business, commerce, law, finance, accountancy, management, industry, public affairs, administration or in any other matter which in the opinion of the Central Government is useful to the Appellate Tribunal.

(A)

Search-cum-Selection Committee for the post of Chairperson and

Judicial Member of the Appellate Tribunal,?

- (i) Chief Justice of India or his nominee-chairperson;
 - (ii) Secretary to the Government of India, Ministry of Power- member;
 - (iii) Secretary to the Government of India to be nominated by the Central Government- member;
 - (iv) two experts, to be nominated by the Central Government-members.
- (B)

Search-cum-Selection Committee for the post of the Technical Member of the Appellate Tribunal,?

- (i) a person to be nominated by the Central Governmentchairperson;
- (ii) Secretary to the Government of India, Ministry of Power- member;
- (iii) Secretary to the Government of India to be nominated by the Central Government- member;
- (iv) two experts to be nominated by the Central Government-members.

Three Years

Chairperson- Seventy years

Member- Sixty-five years

18.
Armed Force Tribunal under the Armed Forces Act, 2007 (55 of 2007)

- (1) A person shall not be qualified for appointment as Chairperson, unless, he, -
 - (a) is, or has been, or is qualified to be a Judge of Supreme Court or,
 - (b) is or has been a Chief Justice of a High Court.
- (2) A person shall not be qualified for appointment as Judicial Member unless he is, or has been, a Judge of a High Court.
- (3) A person shall not be qualified for appointment as Administrative Member, unless he, -
 - (a) he has held or he has been holding the rank of Major General or above for a total period of at least three years in the Army or equivalent rank in the Navy or the Air Force; or
 - (b) he has served for not less than one year as Judge Advocate General in the Army or the Navy or the Air Force, and is not below the rank of Major General, Commodore and Air Commodore respectively; or
 - (c) he is a person of ability, integrity and standing having special knowledge of, and professional experience

of not less than twenty years in, economics, business, commerce, law, finance, accountancy, management, industry, public affairs, administration or in any other matter which in the opinion of the Central Government, is useful to the Armed Forces Tribunal.

(A) The Chairperson

of the Armed Forces Tribunal shall be appointed by the Central Government in consultation with Chief Justice of India.

(B)

Search-cum-Selection Committee for the post of Vice-Chairperson, Judicial Member, or Administrative Member of Armed Forces Tribunal, -

(i) a sitting Judge

of Supreme Court to be nominated by Chief Justice of India or Chairman, Law Commission of India- chairperson;

(ii) Chairperson,

Armed Forces Tribunal ? member;

(iii) two Secretaries to Government of India

including Defence Secretarymembers.

Three Years

Chairperson- Seventy

years

Member- Sixty-five years

19.

National Green Tribunal under the National Green

Tribunal Act, 2010 (

19 of 2010

)

(1) A person shall

not be qualified for appointment as Chairperson, unless he, ?

(a) is, or has been,

or is qualified to be, a Judge of Supreme Court; or

(b) is, or has been,

Chief Justice of a High Court; or

(c) has, for a period

of not less than three years, held office as Judicial Member or

Expert Member; or

(d) is a person of

ability, integrity and standing, and having special knowledge of,

and professional experience of not less than twenty-five years in

law including five years? practical experience in the field

of environment and forests.

(2) A person shall

not be qualified for appointment as Judicial Member, unless he, ?

(a) is, or has been,

or is qualified to be, a Judge of a High Court; or

(b) has, for at least

ten years, held a judicial office in the territory of India.

(3) A person shall

not be qualified for appointment as Expert Member, unless he, -

(a) has a degree/

Postgraduation degree/ Doctorate Degree in Science and has an

experience of twenty years in the relevant field including five years? practical experience in the field of environment and forests (including pollution control, hazardous substance management, environment impact assessment, climate change management, biological diversity management and forest conservation) in a reputed National level institution; or

(b) has administrative experience of twenty years including experience of five years in dealing with environmental matters in the Central Government or a State Government or in a reputed National or State level institution.

(A)

Search-cum-Selection Committee for the post of the Chairperson or Judicial Member of the National Green Tribunal, ?

(i) Chief Justice of

India or his nominee-chairperson;

(ii) Secretary to the

Government of India, Ministry of Environment, Forests and Climate Changemember;

(iii) Secretary to

the Government of India to be nominated by the Central Government-member;

(iv) two experts, to

be nominated by the Central Government-members.

(B)

Search-cum-Selection Committee for the post of the Expert Member of the National Green Tribunal, ?

(i) a person to be

nominated by the Central Government -chairperson;

(ii) Secretary to the

government of India, Ministry of Environment, Forests and Climate Change -member;

(iii) Secretary to

the Government of India to be nominated by the Central Government -member;

(iv) two experts, to be nominated by the Central Government -members.

Three Years

Chairperson- Seventy years

Member- Sixty-seven years

[The previous Rules framed by the Center under Section 184 of the Finance Act, namely the Tribunal, Appellate Tribunal and Other Authorities (Qualifications, Experience and Other Conditions of Service of Members) Rules 2017, were struck down by the Constitution Bench of the Supreme Court in Nov 2019 in the case of Rojer Mathew v South Indian Bank. The ground was that the Rules diluted judicial independence, as the Central Government had excessive say in the matter of appointment and removal of Tribunal members. The Court also found the Rules to be vague in respect of qualifications prescribed for members. The court held that the Section 184 of the Finance Act, 2017 did not suffer from excessive delegation of legislative functions as there are adequate principles to guide framing of delegated legislation, which would include the binding dictums of this Court and thus it rules out the possibility of uncertainty. The Rules formulated by the Central Government under Section 184 of the Finance Act, 2017 being contrary to the parent enactment and the principles envisaged in the Constitution as interpreted by this Court, are hereby struck down in entirety. The Central Government was directed to re-formulate the Rules strictly in conformity and in accordance with the

principles delineated by this Court. The court issued a writ of mandamus to the Ministry of Law and Justice to carry out ?Judicial Impact Assessment? and submit the result of the findings before the competent legislative authority. The Central Government in consultation with the Law Commission of India or any other expert body shall revisit the provisions of the statutes referable to the Finance Act, 2017 and place appropriate proposals before the Parliament for consideration of the need to remove direct appeals to the Supreme Court from orders of Tribunals. The present case is considered to be a landmark judgment to ensure the independence of the judiciary. The court has made sure the constitutional spirit is given priority and all the organs of the state function in accordance with principles like separation of power and basic structure doctrine. (https:

indiankanoon.org/doc/36423291/, [https:](https://www.barandbench.com/columns/column-decoding-the-tribunal-judgment)

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